

Stereo HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.36927-J/2022

Muhammad Azam vs The State

Murder Reference No.145/2022

The State vs Muhammad Azam

P.S.L.A. No.35019/2022

Shahid Hussain vs. The State, etc.

J U D G M E N T

Date of hearing:	30.06.2025
Appellant by:	Ms. Nighat Saeed Mughal, Advocate.
State by:	Mr. Abdul Samad, Additional Prosecutor General alongwith Abbas Bhatti, S.I.
Complainant by:	Mr. Ali Haider, Advocate.

FAROOQ HAIDER, J.:- This single judgment will dispose of **Crl. Appeal No.36927-J/2022** filed by Muhammad Azam (appellant) through jail authorities against his “conviction & sentence”, **Murder Reference No.145/2022** sent by trial court for confirmation of death sentence awarded to Muhammad Azam (appellant) and **PSLA No.35019/2022** filed by Shahid Hussain (complainant) against order of acquittal of Muhammad Younis, Muhammad Mudassar, Muhammad Iqbal and Meraaj Bibi, as all these matters have arisen out of one and same judgment dated: 16.05.2022 passed by learned Additional Sessions Judge, Depalpur/ trial court.

2. Muhammad Azam (appellant) along with his co-accused persons namely Muhammad Younis, Muhammad Mudassar, Muhammad Iqbal and Meraaj Bibi was tried in complaint case titled as “**Shahid Hussain versus Muhammad Azam, etc.**” under Sections: 302, 427, 148, 149 PPC and trial court after conclusion of the trial, *vide* impugned judgment dated: 16.05.2022 while acquitting Muhammad Younis, Muhammad Mudassar, Muhammad Iqbal and Meraaj Bibi (aforementioned co-accused persons) has convicted and sentenced the appellant as under: -

<u>Convictions</u>	<u>Sentences</u>
<u>Under Section:</u> 302(b) PPC	“ Death ” as <i>Taz’ir</i> (for committing <i>Qatl-e-Amd</i> of Altaf Hussain) with payment of compensation of Rs.5,00,000/- to the legal heirs of the deceased under Section: 544-A Cr.P.C. and in default thereof to further undergo S.I. for six months.
<u>Under Section:</u> 440 PPC	“ Five Years’ Imprisonment ” with fine of Rs.50,000/- and in default thereof to further undergo S.I. for six months.

All the sentences were ordered to run concurrently and benefit of Section: 382-B Cr.P.C. was also extended to the appellant/convict.

3. Brief facts, as per application (Ex.PA) made by Shahid Hussain (complainant/PW-1) to Ibrahim Abid, Assistant Sub-Inspector (CW-2) for registration of the case are that on 12.11.2020 at about 7:30 a.m., accused Meraaj Bibi wife of Muhammad Iqbal made phone call to brother of complainant namely Altaf Hussain and asked him to reach at Chah Mian Sana Ullah Chachhar near Kot Sher Khan Road; complainant alongwith his brother Altaf Hussain, mother Parveen Bibi and father Muhammad Hussain reached at the address given by the accused at 10:00 a.m. on Move Car bearing No.LEA-8765; after sometime accused (1) Muhammad Azam armed with 30-bore pistol whereas accused (2) Muhammad Younis armed with 30-bore pistol suddenly came in front of their vehicle; accused No.1 and 2 bolted their weapons towards the face of Altaf Hussain (brother of the complainant) whereas co-accused namely Iqbal and Mudassar while raising lalkara asked accused No.1 and 2 to kill him upon which complainant, his mother and father came out of the vehicle and beseeched the accused persons but accused persons ignored their request; accused No.1 while standing in front of the vehicle fired straight shot at Altaf Hussain (brother of the complainant) who was sitting on the driving seat of the vehicle which hit on his head while passing through front screen of vehicle; after that accused No.2 fired shot with his pistol upon brother of complainant which hit at his head while passing through the screen of the vehicle due to which brain came out from the head of his brother and blood started oozing; Altaf Hussain brother of the complainant became unconscious on the seat of car; accused persons Muhammad Azam and Muhammad Younis made firing upon the witnesses who luckily saved but one fire shot hit at tyre of vehicle;

upon hue and cry of witnesses, accused persons while making aerial firing and brandishing their weapons fled away from the spot; brother of the complainant was taken to RHC Baseerpur in unconscious condition; the doctor after treatment referred him to DHQ, Hospital Okara where after first aid, he was referred to General Hospital, Lahore and on the way to General Hospital near Manga Mandi, brother of the complainant succumbed to the injuries.

It is relevant to mention here that motive is not mentioned in the application for registration of case, however, it is mentioned in the complaint (Ex.PF) that Muhammad Azam (accused, who is cousin of the complainant) alongwith other co-accused persons abducted sister of the complainant namely Umm-e-Zainab. The complainant party did not take legal action for the sake of honour, however, they used to demand return of their sister through brotherhood, Altaf Hussain (brother of the complainant) uttered abuses to accused Azam on telephone and exchanged hot words and due to that grudge accused persons in connivance with one another has murdered brother of the complainant.

On the basis of aforementioned application of Shahid Hussain (complainant/PW-1) case was registered *vide* F.I.R. No.707/2020 (Ex.CW-2/A) dated: 12.11.2020 under Sections: 302, 427, 148, 149 PPC at Police Station: Baseerpur, District Okara, however, being dissatisfied with the investigation carried out by the local police, complainant filed “**complaint**” (Ex.PF) against Muhammad Azam, Muhammad Younis, Muhammad Mudassar, Muhammad Iqbal and Meraaj Bibi under Sections: 302, 427, 148, 149 PPC.

Muhammad Azam (appellant) alongwith Muhammad Younis, Muhammad Mudassir, Muhammad Iqbal and Meraaj Bibi (since acquitted co-accused) were summoned by the trial court to face the trial, they were formally charge sheeted to which they pleaded not guilty and claimed trial; complainant produced as many as two witnesses to prove the charge against the accused whereas ten witnesses were examined by the trial court as Court Witnesses; after recording of evidence, appellant was

examined under Section: 342 Cr.P.C. but he refuted the allegations levelled against him; he did not opt to appear as his own witness under Section 340(2) Cr.P.C., however produced documents in his defence. Trial court after conclusion of trial has convicted and sentenced the appellant as mentioned above through the impugned judgment dated: 16.05.2022.

4. Learned counsel for the appellant has submitted that convictions recorded against and sentences awarded to the appellant through impugned judgment are against the 'law and facts' and result of non-reading/ misreading of evidence, therefore, same are not sustainable in the eyes of law. Learned counsel for the appellant finally prayed for acquittal of the appellant.

5. Conversely, learned Additional Prosecutor General assisted by learned counsel for the complainant has supported the impugned judgment and prayed for dismissal of instant appeal; learned counsel for the complainant in support of PSLA (mentioned above) against the order of acquittal of Muhammad Younis, Muhammad Mudassir, Muhammad Iqbal and Meraaj Bibi submits that said order of acquittal is against the law and facts of the case and also result of misreading and non-reading of evidence, therefore, liable to be set aside.

6. Arguments heard. Record perused.

7. It has been noticed that as per case of prosecution, occurrence in this case took place at 10:00 a.m. on 12.11.2020, however, application for registration of F.I.R. (Ex.PA) was filed on 12.11.2020 at 7:20 p.m. and on the basis of said application, F.I.R. (Ex.CW-2/A) was recorded at 7:20 p.m. on 12.11.2020. Though it is mentioned in application (Ex.PA) that after the occurrence, Altaf Hussain (deceased of the case) was taken to RHC Baseerpur in unconscious condition where Doctor after medical treatment referred him to DHQ Hospital, Okara wherefrom after providing first aid he was referred to Lahore General Hospital and when complainant was taking his brother to Lahore General Hospital, he expired near Manga Mandi but neither any Medico-Legal Examination Certificate of Altaf Hussain issued from RHC Baseerpur nor any Emergency Admission Register of RHC Baseerpur was brought on the record by the prosecution so much so any

record showing medical treatment of Altaf Hussain in RHC Baseerpur is also not available on the record; any record to show that Altaf Hussain was referred from RHC Baseerpur to DHQ Hospital, Okara has also not been brought on the record; record about provision of any first aid to Altaf Hussain in DHQ Hospital, Okara has not been produced; similarly, any referral slip to show that Altaf Hussain was referred to General Hospital, Lahore is also not available on the record, therefore, any plausible reason to justify delay in registration of the case has not been brought on the record by the prosecution, hence, there is unexplained delay in registration of the case which reflects that none of the cited eyewitnesses including the complainant was present at the place of occurrence at the relevant time of occurrence. First Information Report (crime report), which is cornerstone of the case of the prosecution, cannot be termed as promptly recorded and such sort of FIR cannot provide any support to the case of prosecution rather superstructure i.e. case of prosecution raised on the basis of such sort of FIR is bound to fall.

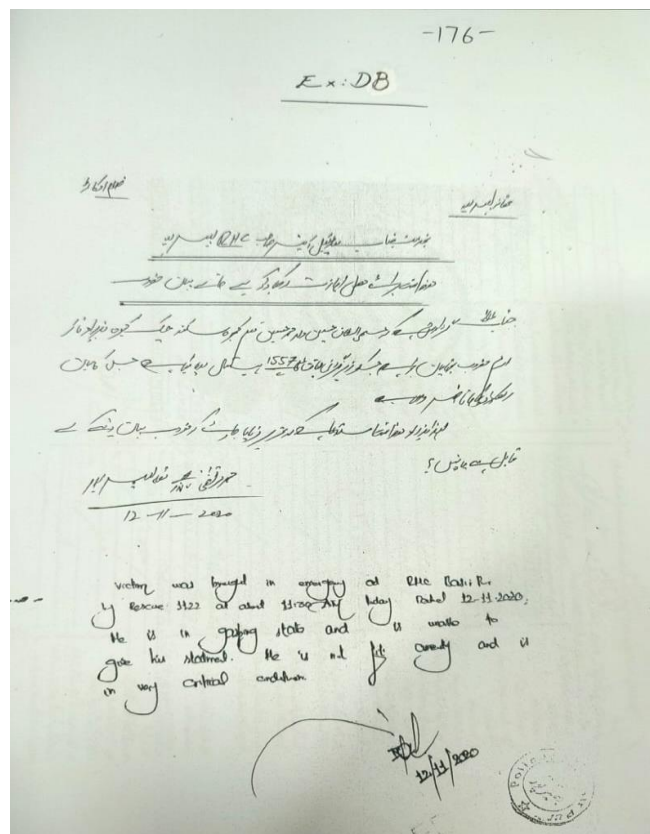
It is well settled that when there is delay in reporting the incident to the police, then prosecution is under obligation to explain such delay and failure to do that will badly reflect upon the credibility of prosecution version. In this regard, guidance has been sought from the case of **“Mst. ASIA BIBI versus The STATE and others” (PLD 2019 Supreme Court 64)**; relevant portion from paragraph No.29 of said case law is hereby reproduced: -

“There is no cavil to the proposition, however, it is to be noted that in absence of any plausible explanation, this Court has always considered the delay in lodging of FIR to be fatal and casts a suspicion on the prosecution story, extending the benefit of doubt to the accused. It has been held by this Court that a FIR is always treated as a cornerstone of the prosecution case to establish guilt against those involved in a crime; thus, it has a significant role to play. If there is any delay in lodging of a FIR and commencement of investigation, it gives rise to a doubt, which, of course, cannot be extended to anyone else except to the accused...”

Postmortem examination on the dead body of the deceased was conducted on 13.11.2020 at 01:40 a.m. and it is also relevant to mention here that documents were also received from the police at 1:30 a.m. on 13.11.2020 which fact leads to the conclusion that documents were not ready, time was

consumed by the prosecution for preparing the same, therefore, postmortem examination was conducted over the dead body of the deceased with delay, which further shows that F.I.R. was even not recorded at the stated time rather with much delay, however, anti-time has been shown in the record which negates presence/availability of cited eyewitnesses including the complainant at the time and place of occurrence; in this regard, cases of “**HAROON SHAFIQUE versus The STATE and others**”(2018 SCMR 2118), “**MUHAMMAD RAFIQUE alias FEEQA versus The STATE**” (2019 SCMR 1068), “**SUFYAN NAWAZ and another versus The STATE and others**” (2020 SCMR 192) and “**MUHAMMAD ADNAN and another versus The STATE and others**” (2021 SCMR 16) can be safely referred.

It goes without saying that application was moved by Muhammad Murtaza, Sub-Inspector (CW-9) of Police Station: Baseerpur to Medical Officer, RHC Baseerpur for having permission to record the statement of Altaf Hussain which is Ex.DB and copy of the same is available at Page No.176 of the Paper Book which is hereby scanned below:-



Perusal of aforementioned application reveals that Altaf Hussain was brought to RHC Baseerpur under supervision of Liaqat Ali 1457/C and it was mentioned by the Medical Officer on the said application that victim

was brought in emergency at RHC Baseerpur at about 11:30 a.m. on 12.11.2020, meaning thereby that police was having the knowledge of occurrence at least at 11:30 a.m. or prior to that but even then case was not registered till then for which any reason appealing to the common prudent mind has not come on the record which reflects deliberation, consultation and procuring as well as inducing the witnesses on part of the prosecution and tailoring story for registration of the case on the one hand whereas negation of presence of cited eyewitnesses including the complainant on the other hand.

Ocular account in this case comprises of Shahid Hussain (complainant/PW-1) and Muhammad Hussain (PW-2). They both were neither resident of the place of occurrence nor were having any job/business place there, therefore were chance witnesses and it was necessary for them to establish valid reason regarding their presence at the time and place of occurrence; relevant portion of statement of Shahid Hussain (complainant/PW-1) in this regard is hereby reproduced:-

"I alongwith my brother Altaf Hussain deceased, my mother Perveen and father Muhammad Hussain are resident of village Chak Kamboh. Chak Kamboh is situated at a distance of 12-km from the place of occurrence."

It is also important to mention here that it was not mentioned in the application (Ex.PA) that why Meraaj Bibi called Altaf Hussain through phone to come at Chah Mian Sana Ullah Chachhar near Kot Sher Khan Road and any motive for the occurrence was also not mentioned in said application (Ex.PA), however, dishonest improvement in this regard was made by the very same complainant Shahid Hussain (PW-1) when he filed complaint regarding the occurrence (Ex.PF) wherein he mentioned that Meraaj Bibi made phone call to Altaf Hussain and summoned him for taking Umm-e-Zainab (sister of Altaf Hussain) who was abducted by Muhammad Azam (accused) alongwith others and motive was also mentioned in the complaint (Ex.PF) that Muhammad Azam (accused) alongwith others abducted Umm-e-Zainab (sister of the complainant) on 01.10.2020, Altaf Hussain uttered abuses to Azam (accused) on telephone, exchange of hot words took place (شدید تلخ کلامی ہو گئی) and due to said grudge accused persons while deceitfully calling Altaf Hussain committed his murder. However, it is

relevant to mention here that neither any phone of Meraaj Bibi was recovered during investigation of the case nor even produced during trial of the case so much so said Umm-e-Zainab was also not produced during trial of the case; relevant portion of statement of Muhammad Murtaza, Sub-Inspector (investigating officer/CW-9) is hereby reproduced:-

“No mobile phone was affected from Mst. Miraj Bibi”

Even allegation levelled by the complainant that Meraaj Bibi summoned Altaf Hussain through phone was found false during investigation of the case; relevant portions of statement of Muhammad Murtaza, Sub-Inspector (investigating officer/CW-9) are hereby reproduced:-

“The allegations levelled by the complainant in the F.I.R. that Miraj Bibi present in the court summoned Altaf Hussain deceased telephonically found false in my investigation.”

“During my investigation it was surface of the record that according to CDRs reports that Miraj Bibi did not make any call to Altaf Hussain deceased. ”

Therefore, said aspect could not be proved during trial of the case, hence the very alleged cause regarding going of complainant and other cited eyewitnesses with Altaf Hussain (deceased of the case) to the place of occurrence could not be established; any document i.e. MLC or referral slip or medical treatment chart or death certificate to show that complainant or any other cited eyewitness was accompanying Altaf Hussain when he was taken in injured condition to hospital was not brought on the record; application for registration of the case was even recorded after thoroughly inspecting the dead body, relevant portion of statement of Shahid Hussain (complainant/PW-1) is hereby reproduced:-

“Firstly I.O. inspected the dead body thoroughly and thereafter I got drafted application Ex.PA. The dead body handed over to us after autopsy at 04:00 a.m. on the following day i.e. 13.11.2020 at Police Station Basirpur but I do not know exactly the time of conducting Post mortem examination by the Doctor.”

It was case of prosecution that Altaf Hussain was shifted in injured condition to RHC Baseerpur from where to DHQ Hospital, Okara and from there he was taken to General Hospital, Lahore but any cloth of cited eyewitnesses or

complainant smeared with blood of Altaf Hussain has not been produced during trial of the case.

It is very much important to mention here that version of complainant was not verified by any person who is resident of the vicinity; relevant portion of statement of Shahid Hussain (complainant/PW-1) is hereby reproduced:-

“It is correct that none from the vicinity verified our version put forth by me in the F.I.R. during the course of investigation.”

Moreover version of complainant party that they went to get custody of Umm-e-Zainab was found as dishonest improvement and in this regard relevant portion of statement of Shahid Hussain (complainant/PW-1) is hereby reproduced:-

“I had got recorded in my application Ex.PA that “to get the custody of my sister Zainab Bibi as she was abducted by accused Muhammad Azam etc. prior to the occurrence” confronted with Ex.DA where it is not so recorded.”

Furthermore, motive introduced by the prosecution during trial of the case was also found as dishonest improvement and relevant portion of statement of Shahid Hussain (complainant/PW-1) is hereby reproduced:-

“I had not got recorded in my application Ex.PA which I got recorded in my examination in chief “motive behind the occurrence is that accused Muhammad Azam had abducted my sister Zainab Bibi some days prior to the occurrence alongwith his companions and my brother had abused Muhammad Azam due to which they committed the murder of my brother Altaf Hussain.”

By now it is well settled that witness who introduces dishonest improvement or omission for strengthening the case, cannot be relied; in this regard, case of “**MUHAMMAD ARIF versus The STATE**” (2019 SCMR 631) and “**KHALID MEHMOOD and another versus The STATE and others**” (2021 SCMR 810) can be advantageously referred.

It was not brought on the record that in whose presence Altaf Hussain uttered abuses to Muhammad Azam accused (now appellant) and in whose presence altercation took place between them, so this claim of prosecution also could not be proved. Thus motive could not be established.

Now when stated cause of going complainant and cited eyewitnesses including the complainant with Altaf Hussain (deceased of the case) to the place of occurrence i.e. summoning on phone call by Meraaj Bibi could not be established and even any abuse uttered by Altaf Hussain to Muhammad Azam (accused) or any altercation took place between them also could not be established then it can safely be said that if reason for the occurrence was abduction of Umm-e-Zainab by Muhammad Azam (accused) alongwith others then it could have been the reason for the complainant party to murder Muhammad Azam (accused) and not for Muhammad Azam (accused) to murder them and in such state of affairs if for the sake of arguments, it is considered as the reason for the occurrence then this reason was also for killing the complainant who was brother of Umm-e-Zainab, Muhammad Hussain (PW-2) who was father of Umm-e-Zainab and Perveen Bibi who was mother of Umm-e-Zainab but they remained unhurt which also raises eyebrows regarding prosecution version. Any case was not registered regarding abduction of Umm-e-Zainab; relevant portions of statement of Muhammad Hussain (PW-2) in this regard are hereby reproduced:-

“I did not get register criminal case regarding abduction of my daughter Umm-e-Zainab. Witness volunteered that due to intervention of Bradari I did not get register criminal case against the accused.”

“It is correct that we had not mentioned the persons of my brotherhood who allegedly intervene for non-registration of F.I.R. regarding the abduction of Umm-e-Zainab as witness in this private complaint as well as in the F.I.R. case. We did not produce the aforesaid person of my brotherhood in order to verify my stance which is stated by me today in the court.”

Furthermore, Muhammad Hussain (PW-2) also introduced dishonest improvements; relevant portions of statement of Muhammad Hussain (PW-2) in this regard are hereby reproduced:-

“I had stated before the I.O. u/s 161 Cr.P.C. that “to take his siter Zainab Bibi from Chah Mian Sanaullah Chachhar, near Kot Sher Khan road” confronted with Ex.DA where it is not recorded from portion A to A.”

“I had stated before the I.O. in my statement u/s 161 Cr.P.C. that motive behind the occurrence was that accused Muhammad Azam present in the court abducted my daughter Zainab Bibi some days prior to the occurrence aongwith his companions and my son abused Muhammad Azam accused due to which they committed the

murder of my son Altaf Hussain confronted with Ex.DA where it is not so recorded from portion B to B.”

As per column No.8 of Inquest Report, eyes of the deceased were open; relevant portion of statement of Muhammad Murtaza, Sub-Inspector (CW-9) is hereby reproduced:-

“I have mentioned in column No.8 of the inquest report the eyes of the deceased were opened.”

and it is worth-mentioning here that Muhammad Murtaza, Sub-Inspector (investigating officer/CW-9) clearly stated before the court that presence of complainant and other cited eyewitnesses was not verified by residents of the place of occurrence and in this regard relevant portions of his statement are hereby reproduced:-

“During my first visit of place of occurrence the people of the vicinity joined the investigation and I recorded their statement in “Duryaft”. Mian Sana Ullah Chachar the owner of the GEO service station joined the investigation and I got recorded the statement of Mian Sana Ullah Chachar. It was the version of the aforesaid Mian Sana Ullah Chachar that at the time of occurrence he alongwith employees/servants were present at his GEO service station. He further stated that one girl while making cell phone call came towards home and thereafter returned back on several time. It was the version of Mian Sana Ullah Chachar that the main who was sitting at a driving seat became injured and one of them (Mian Sana Ullah Chachar) called the workers of rescue 1122. He further stated that rescue 1122 came at the spot and shifted the injured to the hospital. It is correct that the aforesaid Mian Sana Ullah Chachar did not disclose the presence of Shahid Hussain complainant Parveen Bibi and Muhammad Hussain PWs at the time of occurrence with Altaf Hussain the then deceased.”

“On the same day, the persons who joined the investigation alongwith Mian Sana Ullah Chachar namely Mian Ghulam Mohiodeen Chachar, Haider Ali, Syed Muhammad Ameen s/o Syed Muhammad Altaf Hussain Shah and Shoukat Ali also joined the investigation and corroborated the statements of the above mentioned Mian Sana Ullah Chachar.”

“It is correct that the above mentioned independent respectables did not disclose the presence of Muhammad Shahid Hussain complainant alongwith Parveen Bibi and Muhammad Hussain PWs at the place of occurrence at the time of occurrence.”

Furthermore, role alleged against Muhammad Younis (co-accused) that he made firearm shot and caused injury to the deceased was not proved during

investigation; relevant portion of statement of Muhammad Murtaza, Sub-Inspector (investigating officer/CW-9) is hereby reproduced:-

“I challaned Muhammad Younis accused to the extent of mere presence at the place of occurrence. No recovery was affected from Muhammad Younis accused.”

It is relevant to mention here that Muhammad Younis (co-accused) against whom allegation of causing firearm injury to the deceased was levelled on the basis of same set of evidence and same circumstances, he has been acquitted.

In view of above discussed facts, ocular account produced by the prosecution in this case is neither confidence inspiring nor reliable, hence same is hereby discarded.

Medical evidence in this case was produced by Dr. Saif Ullah, Medical Officer (CW-7). As per site plan of place of occurrence (Ex.CW-4/A), Muhammad Azam (present appellant) fired shot with pistol 30-bore at Altaf Hussain from a distance of four feet, if length of his arm and barrel of pistol is deducted from said distance, then from the remaining distance there should have been at least blackening at the wound of the deceased but it was not observed. Any MLC, referral slip from RHC, Baseerpur or DHQ Hospital, Okara was not produced by the prosecution (as detailed above) and it was mere version of the prosecution; relevant portion of statement of Dr. Saif Ullah, Medical Officer (CW-7) is hereby reproduced:-

“It is correct that it is no MLC case. There is no referring letter from RHC Basirpur or from DHQ Hospital, Okara for further referring to LGH Lahore. The witness volunteered that it was the version of the police.”

Any document was not produced to show that deceased was provided any first aid in injured condition; relevant portion of statement of Dr. Saif Ullah, Medical Officer (CW-7) is hereby reproduced:-

“At the time of post mortem examination police did not produce any document for the verification regarding the providing of first aid to the deceased in injured condition.”

As per ocular account Muhammad Azam (accused) fired shot which hit at the head of Altaf Hussain (deceased of the case); similarly, Muhammad Younis (co-accused) fired shot at Altaf Hussain which also hit at his head; in such state of affairs there should have been two firearm entry wounds on the head of the

deceased but the Medical Officer stated that he has not mentioned injury No.1 as entry wound and he has also stated that he has not mentioned in the detail of injury No.2 as ante wound and it goes without saying that margins of the wounds were irregular; in this regard relevant portion of statement of Dr. Saif Ullah, Medical Officer (CW-7) is hereby reproduced:-

“I have not mentioned injury No.1 as an entry wound in my post mortem. It is correct that I have not mentioned in the detail of injury No.2 as ante wound.”

On the one hand medical evidence has not supported the ocular account in *stricto sensu* whereas on the other hand medical evidence is mere supportive/confirmatory type of evidence; it can tell about locale, nature, magnitude of injury, duration of the injury and kind of weapon used for causing injury but it cannot tell about identity of the assailant who caused the injury; therefore, same neither can provide any corroboration nor is of any help to the prosecution in peculiar facts and circumstances of the case and in this regard guidance has been sought from the case of “**MUHAMMAD RAMZAN versus The State**” (2025 SCMR 762), relevant portion from the case law is as under:-

“It is by now well settled that medical evidence is a type of supporting evidence, which may confirm the prosecution version with regard to receipt of injury, nature of the injury, kind of weapon used in the occurrence but it would not identify the assailant.”

Though two cartridge cases secured from the place of occurrence were found as having been fired from the pistol recovered from the appellant, however, it is relevant to mention here that as per report of Punjab Forensic Science Agency (Ex.PK), two cartridge cases were received on 23.11.2020 whereas pistol was received on 07.12.2020, as per case of prosecution pistol was recovered from the appellant on 04.12.2020; relevant portion of statement of Muhammad Murtaza, Sub-Inspector (investigating officer/CW-9) is hereby reproduced:-

“On 04.12.2020 Muhammad Azam accused, during investigation, made a disclosure and in pursuance of which led to the recovery of pistol 30-bore to his house while in police custody. He produced the pistol 30-bore P-4 after taking out the same from an iron box lying the room of his residential house.”

As per case of prosecution Muhammad Azam (accused) was arrested on 24.11.2020; relevant portion of statement of Muhammad Murtaza, Sub-Inspector (investigating officer/CW-9) is hereby reproduced:-

“On 24.11.2020 after receiving spy information I conducted the raid at “Darbar Baba Chisty Qutabdeen” and arrested Muhammad Azam, Muhammad Younis and Muhammad Mudasar accused of this case and recorded their respective version.”

Meaning thereby that empties were sent just one day prior to the arrest of the appellant i.e. on 23.11.2020 which makes it a suspect circumstance; in this regard, guidance has been sought from the case of **“Noor Ahmad versus The State and others”** (2019 SCMR 1327). Furthermore, Shahid Hussain (complainant/PW-1) clearly stated that Muhammad Azam (accused) was arrested in this case on the day of registration of case i.e. 12.11.2020; relevant portion of statement of Shahid Hussain (complainant/PW-1) in this regard is hereby reproduced:-

“Accused persons Azam, Mudassir and Muhammad Younis were arrested by the police on the same day when the F.I.R. was registered by me i.e. 12.11.2020.”

So, on the one hand, version of Muhammad Murtaza, Sub-Inspector (investigating officer/CW-9) regarding arrest of Muhammad Azam (accused) on 24.11.2020 has been negated whereas on the other hand it reflects that empties were sent to Punjab Forensic Science Agency after arrest of the accused and it also goes without saying that if accused was arrested on 12.11.2020 then after the statutory period provided under Section: 61 read with Section: 167 Cr.P.C., further detention of the appellant with the police was illegal and so pistol was allegedly recovered on 04.12.2020 from the appellant when he was in illegal custody which also raises question mark about legal efficacy of the recovery and all these factors make the report of Punjab Forensic Science Agency as non-conclusive and recovery as inconsequential. In this regard, guidance has been sought from the case of **“The State through P.G. Sindh and others versus Ahmed Omar Sheikh and others”** (2021 SCMR 873) and relevant portion from the same is hereby reproduced:-

“As already discussed the arrest of the accused persons were shown subsequently and prior to that they were kept in illegal confinement as claimed by the learned counsel for the parents of Daniel Pearl but this fact cannot be ignored simply on the logic of being a high profile case. Article 10(2) of the Constitution of the Islamic Republic of Pakistan

(Constitution) clearly mandate that every person who is arrested and detained in custody shall be produced before the Magistrate within a period of twenty-four hours of such arrest and no such person can be detained in custody beyond the period without the authority of the Magistrate. So while keeping the accused persons in illegal detention, the prosecution had violated the fundamental rights, constitutional mandate and law. Due to this illegal detention of accused persons, the recoveries which were planted subsequently are negated from the statement of Ronald Joseph (PW-8) and John Molligan (PW-12) and have lost its value.”

Hence, recovery of pistol is of no avail to the prosecution.

8. It is well established principle of law that single dent/ circumstance in case of prosecution is sufficient for acquittal; in this regard, case of “**ABDUL GHAFOR versus The STATE**” (2022 S C M R 1527) can be safely referred.

9. In the instant case after examining the prosecution case from all corners and evaluating it on the touchstone of principle of “safe administration of criminal justice”, this Court has arrived at the conclusion that prosecution has miserably failed to establish its case against the appellant beyond shadow of doubt. As prosecution has failed to prove its case against the appellant, therefore, there is no need to discuss defence version.

10. Resultantly, instant appeal bearing **Crl. Appeal No.36927-J/2022**, filed by Muhammad Azam (appellant), is allowed; convictions recorded and sentences awarded to the appellant through impugned judgment dated: 16.05.2022 are hereby set aside. Appellant is acquitted of the charge, he be released from jail forthwith, if not required in any other case.

Murder Reference No.145 of 2022 is answered in **negative** and death sentence awarded to Muhammad Azam is not confirmed.

11. So far as **P.S.L.A. No.35019/2022** filed by Shahid Hussain (complainant) against order of acquittal of Muhammad Younis, Muhammad Mudassar, Muhammad Iqbal and Meraaj Bibi from the charges passed by trial court through impugned judgment dated: 16.05.2022 is concerned, suffice it to say that in view of what has been discussed above, prosecution has been failed to prove case against all the accused persons (mentioned above) through leading cogent and confidence inspiring evidence. By now it is well settled that acquittal cannot be disturbed for the reason that another view was equally possible; in this regard, guidance is sought from the dictum laid down by the Supreme Court of

Pakistan in the case of “**MUHAMMAD ZAMAN versus THE STATE and others**” (2014 SCMR 749). Furthermore, after acquittal, accused attains double presumption of innocence and same can only be disturbed/interfered with if it is capricious/fanciful/ perverse/speculative/ artificial or arbitrary, however, without these factors, order of acquittal cannot be interfered with and in this regard, reliance can be placed upon the cases of “**GHULAM SIKANDAR AND ANOTHER versus MAMARAZ KHAN AND OTHERS**” (PLD 1985 Supreme Court 11), “**Mst. ZAHIDA SALEEM versus MUHAMMAD NASEEM and others**” (PLD 2006 Supreme Court 427) and “**JAVAID AKBAR versus MUHAMMAD AMJAD AND JAMEEL @ JEELA and another**” (2016 SCMR 1241); further guidance in this regard is also sought from the cases of “**Haji PAIO KHAN versus SHER BIAZ and others**” (2009 SCMR 803) and “**MUHAMMAD SHAFI alias KHDDOO versus The State and others**” (2019 SCMR 1045); from, latter case law, relevant portion is reproduced:-

“It is by now well settled that acquittal carries with it double presumption of innocence; it is reversed only when found blatantly perverse, resting upon fringes of impossibility and resulting into miscarriage of justice. It cannot be set aside merely on the possibility of a contra view.”

Thus, **P.S.L.A. No.35019/2022** is dismissed.

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

Approved for reporting.

(ALI ZIA BAJWA)
JUDGE

(FAROOQ HAIDER)
JUDGE

This judgment has been
dictated and pronounced
on 30.06.2025 whereas
after preparation, signed
on 01.07.2025.

Ifikhar